

24NWCV01989 24NWCV01989

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-03

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Case Number: 24NWCV01989 Hearing Date: August 3, 2026 Dept: C

KATHERINE ESPINOZA vs

CITY OF WHITTIER, et al., Case No. 24NWCV01989

This premises liability

action is set for trial on December 2, 2026.

Defendant County of Los Angeles's Motion for Summary Judgment is scheduled for hearing on November 3, 2026.

County applies ex parte for an order advancing the hearing/shortening time/continuing trial on the grounds that the County timely filed and served (electronically) its Motion for Summary Judgment on June 29, 2026, but the earliest available hearing date was November 3, 2026, which is less than 30 days before trial. Notice of a motion for summary judgment shall be served at least 81 days before the hearing, and the motion shall be heard no more than 30 days before trial. (CCP §437c, subd. (2) and (3).) If the motion is served electronically, the required 81 day period of notice shall be extended by two court days. Based upon the current trial date, the last day to serve a motion for summary judgment was August 11, 2026. Having served its motion on July 29, 2026, Defendant provided timely notice. A court may not refuse to hear a summary judgment motion filed within the time limits of Code Civ. Proc. § 437c. (Cole v. Superior Court (2022) 87 Cal.App.5th 84; Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526.) The ex parte application is GRANTED. Trial is ADVANCED from December 2, 2026 to today and CONTINUED to December 3, 2026 at 10:00 a.m. in Dept. SE-C. A Final Status Conference is set for November 19, 2026 at 10:00 a.m. in Dept. SE-C. All pretrial deadlines shall correspond with the new trial date. Moving party to give notice.